

The Aadhaar (Sharing of Information) Regulations, 2016

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The Aadhaar (Sharing of Information) Regulations, 2016

Act 5 of 2016

Published on 12 September 2016

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The Aadhaar (Sharing of Information) Regulations, 2016

(Regulations No. 5 of 2016)

[Dated 12th September, 2016]

No. 13012/64/2016/Legal/UIDAI (No. 5 of 2016). - In exercise of the powers conferred by sub-section (1), and sub-clause (o) of sub-section (2), of Section 54 read with sub-clause (k) of sub-section (2) of Section 23, and sub-sections (2) and (4) of Section 29, of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016, the Unique Identification Authority of India hereby makes the following regulations, namely:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These regulations may be called the Aadhaar (Sharing of Information) Regulations, 2016.

(2)

These regulations shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016;

(b)

"Aadhaar Letter" means a document for conveying the Aadhaar number to a resident;

(c)

"Aadhaar number holder" means an individual who has been issued an Aadhaar number under the Act;

(d)

"Authority" means the Unique Identification Authority of India established under sub-section (1) of section 11;

(e)

"requesting entity" means an agency or person that submits the Aadhaar number, and demographic information or biometric information, of an individual to the Central Identities Data Repository for authentication.

(2)

All other words and expressions used in these regulations but not defined, and defined in the Act and the rules and other regulations made there under, shall have the meanings respectively assigned to them in the Act or the rules or other regulations, as the case may be.

Chapter II

Restrictions on Sharing of Identity Information

3.

Sharing of information by the Authority.

(1)

Core biometric information collected by the Authority under the Act shall not be shared with anyone for any reason whatsoever.

(2)

The demographic information and photograph of an individual collected by the Authority under the Act may be shared by the Authority with a requesting entity in response to an authentication request for e-KYC data pertaining to such individual, upon the requesting entity obtaining consent from the Aadhaar number holder for the authentication process, in accordance with the provisions of the Act and the Aadhaar (Authentication) Regulations, 2016.

(3)

The Authority shall share authentication records of the Aadhaar number holder with him in accordance with regulation 28 of the Aadhaar (Authentication) Regulations, 2016.

(4)

The Authority may share demographic information and photograph, and the authentication records of an Aadhaar number holder when required to do so in accordance with Section 33 of the Act.

4.

Sharing of information by a requesting entity.

(1)

Core biometric information collected or captured by a requesting entity from the Aadhaar number holder at the time of authentication shall not be stored except for buffered authentication as specified in the Aadhaar (Authentication) Regulations, 2016, and shall not be shared with anyone for any reason whatsoever.

(2)

The identity information available with a requesting entity:

(a)

shall not be used by the requesting entity for any purpose other than that specified to the Aadhaar number holder at the

time of submitting identity information for authentication; and

(b)

shall not be disclosed further without the prior consent of the Aadhaar number holder.

(3)

A requesting entity may share the authentication logs of an Aadhaar number holder with the concerned Aadhaar number holder upon his request or for grievance redressal and resolution of disputes or with the Authority for audit purposes, as specified in regulation 18 of the Aadhaar (Authentication) Regulations, 2016.

5.

Responsibility of any agency or entity other than requesting entity with respect to Aadhaar number.

(1)

Any individual, agency or entity which collects Aadhaar number or any document containing the Aadhaar number, shall:

(a)

collect, store and use the Aadhaar number for a lawful purpose;

(b)

inform the Aadhaar number holder the following details:-

i. the purpose for which the information is collected;

ii. whether submission of Aadhaar number or proof of Aadhaar for such purpose is mandatory or voluntary, and if mandatory, the legal provision mandating it;

iii. alternatives to submission of Aadhaar number or the document containing Aadhaar number, if any;

(c)

obtain consent of the Aadhaar number holder to the collection, storage and use of his Aadhaar number for the specified purposes.

(2)

Such individual, agency or entity shall not use the Aadhaar number for any purpose other than those specified to the Aadhaar number holder at the time of obtaining his consent.

(3)

Such individual, agency or entity shall not share the Aadhaar number with any person without the consent of the Aadhaar number holder.

6.

Restrictions on sharing, circulating or publishing of Aadhaar number.

(1)

The Aadhaar number of an individual shall not be published, displayed or posted publicly by any person or entity or agency.

(2)

Any individual, entity or agency, which is in possession of Aadhaar number(s) of Aadhaar number holders, shall ensure security and confidentiality of the Aadhaar numbers and of any record or database containing the Aadhaar numbers.

(3)

Without prejudice to sub-regulations (1) and (2), no entity, including a requesting entity, which is in possession of the Aadhaar number of an Aadhaar number holder, shall make public any database or record containing the Aadhaar numbers of individuals, unless the Aadhaar numbers have been redacted or blacked out through appropriate means, both in print and electronic form.

(4)

No entity, including a requesting entity, shall require an individual to transmit his Aadhaar number over the Internet unless such transmission is secure and the Aadhaar number is transmitted in encrypted form except where transmission is required for correction of errors or redressal of grievances.

(5)

No entity, including a requesting entity, shall retain Aadhaar numbers or any document or database containing Aadhaar numbers for longer than is necessary for the purpose specified to the Aadhaar number holder at the time of obtaining consent.

7.

Liability for contravention of the regulations.

- Without prejudice to any action that may be taken under the Act, any contravention of regulations 3, 4, 5 and 6 of these regulations shall constitute a violation of sub-section (2) of Section 29 of the Act.

8.

Redressal of grievances of Aadhaar number holders.

- In the event the identity information of an Aadhaar number holder has been shared or published in a manner contrary to the provisions of the Act or regulations, the Aadhaar number holder may raise queries and grievances in accordance with the regulation 32 of the Aadhaar (Enrolment and Update) Regulations, 2016.

Chapter III

Miscellaneous

9.

Information dissemination about sharing of Aadhaar numbers.

- The Authority may take necessary measures to educate Aadhaar number holders about the uses of Aadhaar numbers and implications associated with its sharing.

10.

Savings.

- All procedures, orders, processes, standards and policies issued and MOUs, agreements or contracts entered by the Unique Identification Authority of India, established vide notification of the Government of India in the Planning Commission number A-43011/02/2009-Admin. I, dated the 28th January, 2009 or any officer of such authority, prior to the establishment of the Authority under the Act shall continue to be in force to the extent that they are not inconsistent with the provisions of the Act and regulations framed thereunder.

11.

Power to issue clarifications and guidelines.

- In order to remove any difficulties or clarify any matter pertaining to application or interpretation of these regulations, the Authority may issue clarifications and guidelines in the form of circulars.

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